



February 3, 2025

Lt. Governor Winsome Earle-Sears
President, Presiding Officer of the VA Senate
Office of the Lt. Governor
P.O. Box 1195
Richmond, VA 23218

Senator Louise Lucas
President Pro Tempore of the VA Senate
General Assembly Bldg., Room 1404
P.O. Box 396
Richmond, VA 23218

Senator Scott Surovell
Majority Leader of the VA Senate
General Assembly Bldg., Room 1405
P.O. Box 396
Richmond, VA 23218

Senator Ryan McDougale
Minority Leader of the VA Senate
General Assembly Bldg., Room 1406
P.O. Box 396
Richmond, VA 23218

RE: Letter in Opposition to Virginia SB 1023

Dear Lt. Governor Earle-Sears, Senator Lucas, Senator Surovell, and Senator McDougale:

On behalf of the advertising industry, we write to oppose Virginia SB 1023.¹ We provide this letter to express our non-exhaustive list of concerns about this bill. Our organizations support meaningful privacy protections for Virginians. As presently drafted, SB 1023 contains substantive provisions flatly banning the sale of precise geolocation data that are out-of-step with privacy legislation in other states and inconsistent with already existing consumer protections under the Virginia Consumer Data Protection Act (“VCDPA”). Accordingly, we ask you to decline to advance this bill.

As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product (“GDP”) in 2020.² By one estimate, over 300,000 jobs in Virginia are related to the ad-subsidized Internet.³ We would welcome the opportunity to engage with the Committee further on the non-exhaustive list of issues with SB 1023 outlined here.

¹ Virginia SB 1023 (2025 Session), located [here](#).

² John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located at https://www.iab.com/wp-content/uploads/2021/10/IAB_Economic_Impact_of_the_Market-Making_Internet_Study_2021-10.pdf.

³ *Id.* at 135.

I. SB 1023’s proposed ban would ignore existing VCDPA protections, diverge from the approach to precise geolocation data used across all other effective state privacy laws, and stop Virginia consumers from receiving desired location-based services.

Under the VCDPA, precise geolocation data is considered sensitive personal information and is therefore already subject to stringent requirements.⁴ Companies must obtain clear, affirmative opt-in consent from consumers before collecting, processing, or sharing this type of data.⁵ This ensures that consumers have greater control over their personal information and can make informed decisions about who can access and use their precise geolocation data. Like Virginia, almost every other state that has passed an omnibus privacy law has embraced this opt-in consent approach for precise geolocation data sales. The states that have not taken this approach require a notice and opt out. Instead of imposing a strict ban on this activity, we strongly believe consumers should be able to control how their location data is used. Under Virginia law today, upon a consumer’s consent, precise geolocation data may be transferred to provide them benefits, such as coupons or other relevant advertising for products and services close in proximity to them. Imposing a complete ban on the sale of precise geolocation data would inhibit Virginia businesses’ ability to provide useful services, including marketing and advertising, and Virginia consumers would experience reduced access to pertinent messaging and offerings they desire and expect.

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⁴ VCDPA § 59.1-575.

⁵ *Id.* at § 59.1-578.



We and our members strongly support meaningful privacy protections for consumers. We believe, however, that SB 1023 would impose an unnecessary ban that would unreasonably restrict the free flow of information that powers the economy and Virginians' access to helpful resources. We therefore respectfully ask the Senate to decline to advance SB 1023 as proposed and we welcome the opportunity to engage with you further about the concerns raised in this letter.

Thank you in advance for your consideration of this letter.

Sincerely,

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